

M/s Sumiti Alloys Pvt. Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 19 May 2023 · 2023:AHC:109764-DB · WRIT - C No. - 46194 of 2014 ·
Writ dismissed as not pressed

HEADNOTE

A writ challenging an additional-security demand under para 4.20 of the U.P. Electricity Supply Code, 2005, earlier stayed on parity with connected matters, was dismissed as not pressed without deciding the demand.

FACTUAL SUMMARY

M/s Sumiti Alloys Pvt. Ltd. challenged a 22 May 2014 demand notice of Paschimanchal Vidyut Vitran Nigam Ltd. seeking additional security under para 4.20 of the U.P. Electricity Supply Code, 2005. On 1 September 2014 a Division Bench stayed the demand, noting identical stays in connected writs including Writ Petition (C) No. 51844 of 2009, and listed the matter with those cases. On 19 May 2023 counsel prayed that the writ be dismissed as not pressed.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.20

additional security

HOLDING

The writ challenging the para 4.20 additional-security demand was dismissed as not pressed, without any determination of the demand's validity. ¶ 1-2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE ADDITIONAL-SECURITY DEMAND UNDER PARA 4.20 OF THE U.P. ELECTRICITY SUPPLY CODE, 2005

The 2014 stay was interlocutory; the 2023 dismissal as not pressed left the demand unadjudicated. ¶ 1-2